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UNFINISHED BUSINESS:
A RESPONSE TO THE SYMPOSIUM "THE MERCHANT OF
VENICE AND CONTEMPORARY THEORY"

How do you write criticism without taking revenge? That is my problem this afternoon. The papers delivered in this symposium demand a serious, critical response, not a vengeful one. They do not treat *The Merchant of Venice* as a fixed point on a chronological timeline, a product of a culture called renaissance or early modern that is both absolutely different from and yet genealogically related to and productive of modernity; nor do they solve its problems by inserting it into this or that historical context. Instead, they treat the play as a work of theory that speaks directly and familiarly to the concerns of contemporary theory. The refusal of historical explanation occurs explicitly in Julia Lupton's paper, which calls for a "return to theory—to the universal concerns of philosophy, psychoanalysis, politics, and theology" in opposition to "a moment dominated by historicism and cultural studies." Her paper is antihistorical both indirectly, in that it does not provide a historical context for the play, and directly, in that it resists the spirit of the time. But it might be more accurate to say that Lupton proposes not a theoretical, and therefore antihistorical, account of the play, but rather a different way of doing history. One of her remarkable and subtle moves is to read the play as the period piece that it really wants to be—in other words, a document of the Republic of Venice as well as renaissance England; she endorses Shakespeare's knowledge of Judaism, and of Venice's constitution and laws, as real and accurate. The more obvious productive move that she makes is suggested by the preposition from her title: she removes the character Shylock from the renaissance altogether and places him "between" the modern political thinkers Carl Schmitt and Hannah Arendt. The result is, at least, a more complicated chronology in which at any point in time characters from Shakespeare's play might come into view or recede. Art Horowitz creates a different fold in the timeline with his preposition "after," suggesting that the play comes of age in response to modern antisemitism, including the holocaust. The phrase "after Auschwitz" is of course Adorno's, but interestingly Zdravko Planinc argues that reading the play "through" Adorno—in other words, correcting a historical mistake, supplying a critical description of the play that is unfortunately lacking in Adorno's papers—necessitates forgetting that anything happened at Auschwitz, imagining a history of modernity in which there was no holocaust, only a free market. Oona Eisenstadt argues that the play is Derrida's

response to his early reception—to critics, particularly John Caputo, who want to convert him to Christianity.

But perhaps the most powerful dislocation in conventional ways of relating Shakespeare to history and theory is suggested by Lupton's other preposition "with" in the phrase "thinking with Shakespeare." Traditionally, Shakespeare does not think. In his collection of aphorisms *Timber, or Discoveries*, Ben Jonson skeptically records the boast that Shakespeare "never blotted out a line," and comments "would he had blotted a thousand."¹ In other words, Shakespeare writes without thinking, which puts him at a disadvantage, because thinking is good for poems. Also, traditionally, readers of Shakespeare do not think. In his elegy "On Shakespeare," Milton writes, either in praise or complaint, "Thou our fancy of itself bereaving/ Dost make us marble with too much conceiving" (13-14).² When we read Shakespeare, our fancy is colonized by someone else's fancy, and we are literally astonished, turned to stone. We repeat someone else's script. We do not think, but something else thinks through us. Lupton's invitation to think "with" Shakespeare suggests a different, non-revengeful way of doing criticism: instead of asserting an absolute break between the early modern and the modern (historicizing Shakespeare), instead of using Schmitt and Arendt to provide a meta-language that would explain (or theorize) Shakespeare, Lupton creates a flat chronology in which Shakespeare provides his own metalanguage that fits "between" Schmitt's and Arendt's and "with" her own.

There is something fundamentally right about the claim that Shakespeare, at least in *Merchant* if nowhere else, is a theorist. I think this is what Paul Kottman means when he describes the play's undeveloped tragic premises: in this community, tragedy is available as a theory, but not as a sequence of actions. The play is doing all the work that critical historicisms or theories might do on its behalf—creating contexts, and using the contexts to explain behaviors. In the remaining time, I want to express some reservations about the theory. My concerns are not about its truth-value, because I am making an effort to write criticism without taking revenge—to avenge myself on other critics in the name of the play, or on the play in the name of history, or on history in the name of theory. My concerns are about the theory's effects.

My first concern is that the theory is opposed to poetry. I see this opposition most vividly in Eisenstadt's paper, where a Jewish (Shylockian and Derridean) literalism is deployed to counteract Portia's Christian techniques of translation. It seems to me that these latter techniques (which she describes at one point as "taking something someone else has said and tarting it up"), these transactions

¹ Ben Jonson, *Major Works*, ed. Ian Donaldson (Oxford: Oxford University Press, 1985), 539.

² John Milton, *A Critical Edition of the Major Works*, ed. Jonathan Goldberg and Stephen Orgel (Oxford: Oxford University Press, 1991).

between figure and ground, word and image, are simply poetry, by definition—for example, one of the definition that Allen Grossman gives in *Summa Lyrica*, "something of one sort inscribed (written in) something of another sort."³ I can see the value of Eisenstadt's literalism, which is, as she says, quoting Derrida, "to take religion seriously," to take people at their word, to allow them to describe themselves. I will also admit to feeling a certain exhilaration in response to the relentless literalism of many of the readings presented today. But at the same time I regret what we give up by adhering to the literal—all the poetic techniques that make it possible to dematerialize an object, to compare one thing to another, to say that there is more than one of something. My one consolation for this loss comes from an unlikely source: midway through Planinc's literalist reading, Shylock suddenly emerges as a poetic figure, a maker of poetry, in his authorship of the "merry bond," which, according to Planinc, is originally supposed to have a figurative meaning by way of allusion to an old antisemitic folktale. A page or two later, Planinc corrects a common misconception by giving an old testament source for the Pauline figure of "circumcision of the heart," and incidentally establishes a Jewish tradition for the use of figurative language.

My second concern is about humanism. The theory is given a sympathetic elaboration in Lupton's paper because it combines her dual commitments: to the pluralism that she authorizes through Arendt ("the fact that men, not Man, inhabit the world") and the existential or positional social groupings that she authorizes through Schmitt, usefully insisting that friend and enemy are not human and inhuman but different ways of being human. My reservation is that an important aspect of the theory gets lost in this account, which is that it is also an extraordinarily flexible instrument for denying membership in humanity. Consider, to take just one example, the Duke's first lines in the trial scene: "Thou art come to answer/ A stony adversary, an inhuman wretch,/ Uncapable of pity," and so on (4.1.1-3).⁴ Here, as elsewhere, a universal human nature is constituted through the exclusion of one figure. The singularity of this figure is emphasized by the dramaturgy of some of the productions described in Horowitz's paper—particularly the 1903 Broadway production in which Jacob Adler speaks Shylock's lines in Yiddish, and the rest of the cast speak their lines in English—and effaced in others—particularly *The Merchant of Venice as Performed in Theresienstadt*, where the entire cast, in a sense, is Shylock.

My third concern also has to do with humanism. What if humanism is revengeful? I refer to Jalal Toufic's essay "If You Prick Us Do We Not Bleed? No."⁵ Toufic takes as his text Shylock's "Hath not a Jew eyes?" speech, which is

³ Allen Grossman, "Summa Lyrica," in *The Sighted Singer* (Baltimore: Johns Hopkins University Press, 1992), 290.

⁴ References to *Merchant* follow the text and lineation in Stephen Greenblatt, ed., *The Norton Shakespeare* (New York: Norton, 1997).

⁵ Jalal Toufic, *Forthcoming* (Berkeley: Atelos, 2000), 41-46.

perhaps inevitably remembered as a plea for tolerance, although it is finally an argument for revenge. Toufic repeats all of Shylock's questions, in order, and tries to come up with negative answers to them, as a way of short-circuiting the affirmation of revenge at the end of the series. I will just repeat a few of his answers. "If you prick us do we not bleed? No." Toufic collects examples of those who are pricked without bleeding, such as firewalkers in Fiji who "pierce their cheeks, foreheads, tongues, and/or ears, without any blood coming out"; and those who bleed without being pricked, such as Christian saints who bleed through stigmata, and Shi'ites who practice ritualistic bloodletting—not, he is quick to point out, as a demonstration "for the benefit of Israelis and Americans, so that they would be able to ascertain that we too bleed without having to bomb us in South Lebanon," but rather because "I already feel the blood in my veins to be spilled blood irrespective of any wounds suffered in my life." "If you tickle us, do we not laugh? No." According to Toufic, the refusal to laugh is not a sign of excessive seriousness, but rather a protection against a highly developed sense of humor, an over-sensitive sense of humor: if one were to respond appropriately to everything funny in the world, if one allowed oneself to laugh, it might not be possible to stop. "All I ask of this world," Toufic writes, "to which I have already given three books, is that it become less laughable so that I could laugh again without having to die of it." "If you poison us, do we not die?" Again, Toufic answers "no," refusing even mortality, the primary human condition. "We cannot die, because we have unfinished business (in a restrained perspective: old king Hamlet, or an extended one: the death and rebirth cycles of Hinayana Buddhism); or because we have been fundamentally liberated from any unfinished business, and now when in life are fully in life, when in death are fully in death, birth not leading to death, death not leading to life (Dogen, 'Birth and Death')." The point of this series of refusals is both that revenge is based on a principle of similarity, and that humanism in the broad sense (the assumption that all people, everywhere, at all times, are more or less similar) is vengeful.

Following Toufic, Horowitz's description of the problems involved in staging *The Merchant of Venice* after the holocaust, and of what he calls the "nearly superhuman delicacy" necessary for solving the problems, takes on a different resonance. In "nearly superhuman," I hear both excessively human (all too human), and (because of its excess) no longer human. On one hand, in order to perform *The Merchant of Venice* after the holocaust, one would have to avoid the temptation to avenge oneself on and thereby extend a history of brutality and disaster, or, as Planinc suggests, to "suspend our recollection of Auschwitz temporarily," to assert a discontinuity between the holocaust and the cultural productions that precede it in history without being its cause or laboratory. On the other hand, as Horowitz's post-1945 performance history amply documents, far from being impossible or unplayable, the play has become relatively easy to perform, an obvious choice for any theater. To make the same point more strongly, the holocaust is the best reason for performing the play; it would not be

interesting, or not as interesting, in a different history.

To a historian of the present, it would be obvious that we live in an increasingly vengeful community. This vengefulness is reflected in our institutions—a justice system that designs laws to compensate the victims of a crime; a military that operates according to a doctrine of pre-emptive warfare, exacting compensation for merely potential injuries; and a culture in which the performance of revenge is not generically linked to tragedy, as it is in the English renaissance (assuming that action films such as *Die Hard* and *Terminator* even count as tragedy) but is equally at home in comedy, as Planinc points out in his account of the "origins of the modern sitcom" in Portia and Bassanio's "homey Machiavellianism." A cultural critic might also note the ease with which revenge translates from one context to another: both Quentin Tarrantino's *Kill Bill* films and Chan-Wook Park's revenge trilogy ask the same basic question, whether gender makes a difference in the performance of revenge, and come up with the same answer, that it doesn't. Revenge looks the same in matriarchy and in patriarchy; the only significant difference in *Lady Vengeance* (2005) is that the revenge is a little colder, a little more planned. This coldness is also the theme of the refrain spoken by the Uma Thurman character in the *Kill Bill* films, which is that she has "unfinished business" with her enemies—her revenge is not undertaken for her personal gratification, but rather out of a formal obligation to produce closure. The epigraph to *Kill Bill Volume One* (2003) offers coldness as a prescription: "Revenge is a dish best served cold." Which is a cliché, something that might be said by any person. Nonetheless, Tarrantino provides an attribution—unnecessary from the point of view of intellectual property law—and the source he cites, "old Klingon proverb," is an alien culture rather than a human one.

Rather than making the obvious point—that revenge is universal, so much so that even the Klingons have the clichés about it that we have—I want to make the less obvious point that there is something alien in any act of revenge. This alien quality is more visible in older figures of revenge, such as the furies from Senecan revenge tragedy. The English name "furies" does not translate the inversion of the classical name protocols, whereby the figures who manifest as Erinyes, furies, must be addressed and known as "Eumenides," in other words, the kindly ones, those who only wish you well. The modality of this inversion may be flattery (so that the furies, regardless of what they originally intend, treat you a little better), or security (so that the furies pay no attention to the address and do not respond as though being called), or accuracy (maybe the furies really do wish the very best for you). In any case, the furies are an image of externalized revenge, in which an alien force activates and propels human actors. The externalization is not as significant as the alienation. La Rochefoucauld's theory of revenge, which he discusses in the "self-portrait" that introduces some editions of his maxims, internalizes what is essentially the same psychological configuration. "My passions are all moderate and sufficiently under control:

hardly ever have I been seen in a temper and I have never entertained feelings of hatred for anybody. Yet I am not incapable of taking revenge if I am wronged and it is a matter of honor not to let an insult pass unnoticed. On the contrary, I am told that my sense of duty would so effectively take over the function of hatred that I would pursue my revenge more vigorously than many another."⁶ In this self-description, La Rochefoucauld introduces a strong separation between the part of himself that feels and another part that motivates action. The feeling itself is practically empty—he speaks of a hatred that he has "never entertained," which is to say that it has been controlled to a point where it doesn't exist and never did—and is in any case secondary. The primary component of this psychology is a regulatory function that stands outside the feeling, sometimes inciting it and sometimes moderating it, and finally compelling the person to act, to take revenge, purely as a point of honor, to conclude some unfinished business, without hatred but more effectively than any hatred.

Two of the papers from the symposium provide lucid accounts of this alien quality. Kenneth Jackson's reading of the trial scene emphasizes the irrelevance of Shylock's motivation for the enactment of the bond. "Shylock . . . has nothing of this world to lose by ignoring the law and forgiving Antonio." Like Portia's fantasy of a heaven-sent mercy, his revenge is thus a Derridean gift, an economic, the offering of which can't be deserved and the loss of which can't be compensated. Jackson pronounces, "The law is 'other,'" an other that he assimilates to the "messianic desire to preserve the alterity of god," to the postmodern piety that takes the form of a respect for the absolute unbreachability of the other, and to Shakespeare's "hyper-religion." The law in both its aspects (justice and mercy) is traditionally conceived as a formal, and therefore impersonal, principle, but nonetheless one that operates in an economy of loss and compensation—these are the meanings of the blindfold and scales worn and carried by personified justice—but Jackson insists on the spiritual otherness of the law in *Merchant*, where mercy is a product of heaven, and justice is mediated by the old testament figures, such as Abraham and Daniel, who deliver it. Kottman arrives at a similar conclusion by emphasizing Shylock's refusal or inability to give a reason for his actions. Kottman distinguishes the desire for revenge that Shylock expresses at the start of the play, a revenge that would be compensatory, from the hatred that he expresses during the trial scene, which is idiopathic—that is, it resists any account that would assign it a cause or allow it to be communicated to another. This hatred, Kottman argues, is not vengeful, but, rather, uneconomic, and therefore "the equal of mercy." The surprising conclusion, implied in Jackson and stated bluntly by Kottman, is that mercy and hatred are both outside any economy and, at the same time, equal in value. Their radical non-commensurability, in other words, may be compromised by the fact that there's more than one of them.

⁶ La Rochefoucauld, *Maxims*, trans. Leonard Tancock (London: Penguin, 1959), 28.

What if, instead of the Aristotelian, aesthetic humanism that Kottman assumes, where there is a conventional protective distance between the actors performing a tragedy and the audience viewing it, we follow Allen Grossman in positing a Hebraic radical humanism in which there is no barrier, so that, in a tragedy, "no one goes home," there are dead bodies onstage and in the audience?⁷ Tragedy is Grossman's example, but what happens in another genre? In the Muppet Show, it is instructive to note that some of the guest stars are capable of interacting with the muppets, and others are not. Danny Kaye has complicated friendships and rivalries with muppets—notably with Miss Piggy, whom he actively dislikes and is working to undermine—whereas Diana Ross doesn't have anything to say to them; all she can do is smile and appreciate their cuteness. I would not say that Danny Kaye is a better artist than Diana Ross, but he is a more radical humanist.

Sticking with comedy, I remember the tunnel-of-love scene in the Fred Astaire movie *A Damsel in Distress* (1937), where Gracie Allen's conversation with her lover, a snooty English type, is punctuated by encounters with a series of mechanical puppets (spiders, birds, crocodiles with glowing eyes, etc.). She greets them *politely*, nods and says "How do?", and returns seamlessly to the conversation. The punchline—her lover finally says, "I say, you know everybody!"—indicates that her special relationship with objective reality, her good manners in relating to the bug-eyed mechanical creatures, marks her as belonging to a social elite.

Against Toufic, I would suggest, first, that there is an even broader sense of humanism than the one that assumes that all people, everywhere and at all times, are the same (in other words, that there is only one way of being human); and, second, that answering Shylock's questions "no" is not the only way of avoiding revenge. Another way would be to answer the questions yes, while predicating them on things that are not conventionally recognized as human. Doesn't a clock have hands? Doesn't the automatic door at the supermarket have eyes? If you prick a computer, doesn't it bleed?

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⁷ Grossman, 300.